Year of Judgement : 2015

Popular Name : —

Related Topic/Issue : Restrictions on online speech

Related Article/Schedule : 19

Supreme Court Judgement: It struck down section 66A of the Information Technology Act (2000), which provides punishment for sending offensive messages by any person through a computer resource or a communication device. It held that the section in its entirety is violative of the freedom of speech and expression guaranteed under Article 19(1)(a). It further held that the section is not saved by Article 19(2) as it creates an offence which is vague and over-broad. It also held that the wider range of circulation over the internet cannot restrict the content of the right under Article 19(1)(a) nor can it justify the denial of that right.

SUPREME COURT ADVOCATES-ON-RECORD ASSOCIATION CASE (2015)

Name of the Case : Supreme Court Advocates-on-Record Association vs. Union of India

Year of Judgement : 2015

Popular Name : Fourth Judges case or NJAC case

Related Topic/Issue : Appointment of Supreme Court and High Court Judges

Related Article/Schedule : 124 & 217

Supreme Court Judgement: It declared the 99th Amendment Act (2014) as unconstitutional and void on the ground that it affects the independence of judiciary which is one of the components of the basic structure of the constitution. It also declared the National Judicial Appointments Commission Act (2014) as unconstitutional and void. Further, it declared the earlier 'collegium system' of appointment of judges to the Supreme Court and the High Courts to be operative. It ordered to list the case to consider introduction of appropriate measures, if any, for an improved working of the 'collegium system'.

Impact of the Judgement: Consequent to this judgement, both the 99th Amendment Act (2014) as well as the National Judicial Appointments Commission Act (2014) became invalid. Therefore, the earlier collegium system of appointment of judges to the Supreme Court and the High Courts was restored.

Shayara Bano Case (2017)

Name of the Case : Shayara Bano vs. Union of India

Year of Judgement : 2017

Popular Name : Triple Talaq case

Related Topic/Issue : Divorce in the muslim community